



Standard Terms & Conditions of Sale

TERMS & CONDITIONS:

Purchases of products (the "Goods") from Harcourt Europe Limited (Company Number 08451972) whose registered office is Bristol Road, Allington, Chippenham, Wiltshire, England SN14 6NA ("Harcourt") will be governed by these Terms and Conditions set out below, except as otherwise expressly set forth in a written agreement between the customer and Harcourt. No other agreements or understanding, oral or written, in any way purporting to modify these terms and conditions, whether contained in a customer's purchase order or elsewhere or implied by law, trade, custom, practice or course of dealing, shall be binding on Harcourt unless specifically agreed to in writing by an officer of Harcourt.

PAYMENT:

If credit is extended, the customer agrees and understands that all invoices are due and payable within the agreed terms from the invoice date. A finance charge at 1.5% per month (annual rate of 18% per annum) will be charged on balances over the agreed terms. If credit is not extended, payment must be made prior to despatch and in any event within 30 days of the end of the month in which an invoice is presented.

If customer fails to make payment within the agreed terms, Harcourt may defer shipments until such payment is made, or may, at its option, cancel all or any part of unshipped orders. Should legal proceedings be instituted by Harcourt or their authorised representatives to collect any debts of the customer, the customer agrees to pay all actual costs of collection, legal fees and interest on past due amounts in accordance with the Late Payment of Commercial Debts (Interest) Act 1998.

DELIVERY:

Harcourt shall deliver the Goods to the location set out in the order or such other location as the parties may agree (**Delivery Address**) at any time after Harcourt notifies the customer that the Goods are ready. If the Delivery Address is not agreed by one day prior to despatch, an increased carriage/freight charge may apply. Delivery of the Goods shall be completed on the Goods' arrival at the Delivery Address.

Although Harcourt takes care in quoting accurate delivery dates, any dates quoted for delivery are approximate only, and the time of delivery is not of the essence. Harcourt shall not be liable for any delay in delivery of or failure to deliver the Goods that is caused by a Force Majeure Event or the customer's failure to provide Harcourt with adequate delivery instructions or any other instructions that are relevant to the supply of the Goods or denial of access to the Delivery Address.

Any discrepancies in an order (shortages, damages, wrong parts, etc.) must be brought to Harcourt's attention within five (5) working days after receipt of Goods. If Harcourt fails to deliver the Goods, its liability shall be limited to the costs and expenses incurred by the customer in obtaining replacement goods of similar description and quality in the cheapest market available, less the price of the Goods.

The customer shall not be entitled to reject the Goods if Harcourt delivers up to and including [5]% more or less than the quantity of Goods ordered, but a pro rata adjustment shall be made to the invoice on receipt of notice from the customer that the wrong quantity of Goods was delivered.

Harcourt may deliver the Goods by instalments, which shall be invoiced and paid for separately. Each instalment shall constitute a separate contract. Any delay in delivery or defect in an instalment shall not entitle the customer to cancel any other instalment.

All Goods must be inspected and quality checked by the customer to check that they conform to the specifications required by the designer and customer/end-user, including tolerances, load rating, shear strengths, material hardness and material type. Harcourt shall not be liable for items that have not been inspected by the customer upon delivery to the Delivery Address including any damage the items may cause to other parts being manufactured using them.

TITLE AND RISK:

The risk in the Goods shall pass to the customer on the Goods' arrival at the Delivery Address. Title to the Goods shall not pass to the customer until Harcourt has received payment in full (in cash or cleared funds) for the Goods. Until title to the Goods has passed to the customer, the customer shall hold the Goods on a fiduciary basis as Harcourt's bailee; store the Goods separately from all other goods held by the customer so that they remain readily identifiable as Harcourt's property; not remove, deface or obscure any identifying mark or packaging on or relating to the Goods; maintain the Goods in satisfactory condition and keep them insured against all risks for their full price on Harcourt's behalf from the date of delivery; notify Harcourt immediately if it becomes subject to any of the events listed below; and give Harcourt such information relating to the Goods Harcourt may require from time to time, but the customer may resell or use the Goods in the ordinary course of its business.



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If before title to the Goods passes to the customer the customer becomes subject to any of the following events, or Harcourt reasonably believes that any such event is about to happen and notifies the customer accordingly, then, provided the Goods have not been resold, or irrevocably incorporated into another product, and without limiting any other right or remedy Harcourt may have, Harcourt may at any time require the customer to deliver up the Goods and, if the customer fails to do so promptly, enter any premises of the Customer or of any third party where the Goods are stored in order to recover them.

The relevant events referred to above are: (a) if the customer commits a material breach of its obligations under these Terms and Conditions and (if such breach is remediable) fails to remedy that breach within 14 days after receipt of notice in writing of the breach; or (b) the customer suspends, or threatens to suspend, payment of its debts, or is unable to pay its debts as they fall due or admits inability to pay its debts, or (being a company) is deemed unable to pay its debts within the meaning of section 123 of the Insolvency Act 1986, or (being an individual) is deemed either unable to pay its debts or as having no reasonable prospect of so doing, in either case, within the meaning of section 268 of the Insolvency Act 1986, or (being a partnership) has any partner to whom any of the foregoing apply; or (c) the customer commences negotiations with all or any class of its creditors with a view to rescheduling any of its debts, or makes a proposal for or enters into any compromise or arrangement with its creditors other than (where the customer is a company) where these events take place for the sole purpose of a scheme for a solvent amalgamation of the customer with one or more other companies or the solvent reconstruction of the Customer; or (d) (being a company) a petition is filed, a notice is given, a resolution is passed, or an order is made, for or in connection with the winding up of the customer, other than for the sole purpose of a scheme for a solvent amalgamation of the customer with one or more other companies or the solvent reconstruction of the customer; or (e) (being an individual) the customer is the subject of a bankruptcy petition or order; or (f) a creditor or encumbrancer of the customer attaches or takes possession of, or a distress, execution, sequestration or other such process is levied or enforced on or sued against, the whole or any part of its assets and such attachment or process is not discharged within 14 days; or (g) (being a company) an application is made to court, or an order is made, for the appointment of an administrator or if a notice of intention to appoint an administrator is given or if an administrator is appointed over the customer; or (h) (being a company) a floating charge holder over the customer's assets has become entitled to appoint or has appointed an administrative receiver; or (i) a person becomes entitled to appoint a receiver over the customer's assets or a receiver is appointed over the Customer's assets; or (j) any event occurs, or proceeding is taken, with respect to the customer in any jurisdiction to which it is subject that has an effect equivalent or similar to any of the events mentioned in paragraphs (b) to (i) (inclusive); or (k) the customer suspends, threatens to suspend, ceases or threatens to cease to carry on all or substantially the whole of its business; or (l) (being an individual) the customer dies or, by reason of illness or incapacity (whether mental or physical), is incapable of managing his or her own affairs or becomes a patient under any mental health legislation.

RETURNS POLICY:

All standard catalogue items may be returned within thirty (30) days from delivery as long as they have not been used or modified and are in resalable condition. Returned Goods may be subject to a 30% re-stocking charge - these fees are applied to offset the costs incurred by Harcourt for handling and/or production work already performed. Any return of excessive quantity of standard catalogue items may be refused at our discretion. Returned Goods must have prior written authorisation from Harcourt and be accompanied by a copy of our shipper/packing list. All shipments without a prior written return authorisation and a copy of our shipper/packing list on or in the package will be refused. Any defective or incorrectly shipped Goods can be returned using our shipping account number (please contact Harcourt so that this can be arranged) and no restocking fee. Custom made or special Goods cannot be returned. Customers are recommended to check at time of placing their order whether the goods are standard catalogue items or non-stock items ('specials')

PRICING POLICY:

Prices on blanket orders will be based on the quantity of Goods to be released for each shipment. Prices are subject to change without notice. Quoted prices will be valid for thirty (30) days, unless otherwise specified.

Prices are exclusive of costs and charges of packing, insurance and transport of the Goods, which will be charged in addition based on the delivery method chosen by the customer.

VALUE ADDED TAX:

VAT will be charged where applicable in addition to prices of the Goods and packing, insurance and transport charges.

LIMITED WARRANTY:

Harcourt warrants that the Goods sold hereunder will be designed and manufactured to conform with the specifications in its catalogues/website. Any part or product found by the customer not to be in conformance must be notified to Harcourt within 30 days after delivery and where it is returned by the customer and determined by Harcourt to be defective in material or workmanship will be repaired or replaced, or, at Harcourt's option, the purchase price may be refunded.



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WARRANTY DISCLAIMER:

Harcourt shall not be liable for the Goods' failure to comply with the warranty if the customer makes any further use of such Goods after giving notice to Harcourt of the defect; the defect arises because the customer failed to follow Harcourt's oral or written instructions as to the storage, installation, commissioning, use or maintenance of the Goods or (if there are none) good trade practice; the defect arises as a result of Harcourt following any drawing, design or specification supplied by the customer; the customer alters or repairs such Goods without the written consent of Harcourt; the defect arises as a result of fair wear and tear, wilful damage, negligence, or abnormal working conditions; or the Goods differ from their description or the Goods' specification as a result of changes made to ensure they comply with applicable statutory or regulatory standards; or the Goods are not materially different from the specification shown at the time of ordering. The Terms and Conditions shall apply to any repaired or replacement Goods supplied by Harcourt.

LIMITATION OF LIABILITY:

Nothing in these Terms and Conditions shall limit or exclude Harcourt's liability for: death or personal injury caused by its negligence, or the negligence of its employees, agents or subcontractors; fraud or fraudulent misrepresentation; breach of the terms implied by section 2 of the Supply of Goods and Services Act 1982 (title and quiet possession); breach of the terms implied by section 12 of the Sale of Goods Act 1979 (title and quiet possession); or defective products under the Consumer Protection Act 1987.

Save as set out above, Harcourt shall under no circumstances whatever be liable to the customer, whether in contract, tort (including negligence), breach of statutory duty, or otherwise, for any loss of profit, or any indirect or consequential loss arising under or in connection with the contract between them; and Harcourt's total liability to the customer in respect of all other losses arising under or in connection with these Terms and Conditions, whether in contract, tort (including negligence), breach of statutory duty, or otherwise, shall in no circumstances exceed the price of the Goods. The terms implied by sections 13 to 15 of the Sale of Goods Act 1979 and the terms implied by sections 3 to 5 of the Supply of Goods and Services Act 1982 are, to the fullest extent permitted by law, excluded from the contract between Harcourt and the customer. This term shall survive termination of these Terms and Conditions.

FORCE MAJEURE:

Harcourt will not be liable for any failure or delay in performing its obligations under these Terms and Conditions to the extent that such failure or delay is caused by a Force Majeure Event. A Force Majeure Event means any event beyond Harcourt's reasonable control, which by its nature could not have been foreseen, or, if it could have been foreseen, was unavoidable, including strikes, lock-outs or other industrial disputes (whether involving its own workforce or a third party's), failure of energy sources or transport network, acts of God, war, terrorism, riot, civil commotion, interference by civil or military authorities, national or international calamity, armed conflict, malicious damage, breakdown of plant or machinery, nuclear, chemical or biological contamination, sonic boom, explosions, collapse of building structures, fires, floods, storms, earthquakes, loss at sea, epidemics or similar events, natural disasters or extreme adverse weather conditions, or default of suppliers or subcontractors.

PART NUMBERS:

All part numbers referenced on any document(s), whether it be on purchases orders, quotations, order acknowledgments, delivery notes, invoices or any other documents are strictly descriptive only.

ADVICE:

Harcourt assumes no obligations or liability for assistance given or obtained in connection with any Goods sold whether or not the customer has downloaded a CAD model for the Goods from Harcourt's website prior to ordering. All such advice or assistance is given and accepted at the customer's risk. Any decision as to use or installation of Goods hereunder is that of the customer.

SPECIFICATIONS:

We do our best to represent our products as accurately as possible in both our catalogue and website; however, all specifications are subject to change without notice.

CERTIFICATIONS:

All product certifications required must be requested at the time of quotation. This would include, but is not limited to, certification for the following: Heat Treat, Hardness, Chemical Testing, Material, and Finish. If not requested at the time of quoting *and* order placement, only our standard Certificate of Conformance will be provided with Goods.



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CUSTOMER FEEDBACK & INFORMATION:

Harcourt as a company take great care in their work and strives for complete customer satisfaction. If you ever have any comments or suggestions on our products or service, please let us know. They are appreciated and will be taken seriously.

All information held about customers will be processed in accordance with the Data Protection Act 1998.

BUSINESS HOURS:

8.00 a.m. to 5.00p.m. GMT, Monday to Friday. Closed on public holidays and weekends.

INTELLECTUAL PROPERTY:

Harcourt is a registered trademark of Harcourt Europe Ltd and all rights are reserved in connection therewith.

All drawings, specifications and CAD models for Goods are proprietary to Harcourt and/or its licensors and are protected by copyright and similar laws worldwide. Customers may not copy or disclose the same to third parties other than the end user of any tooling into which the Goods are to be incorporated nor may items be manufactured or reproduced by or on behalf of a customer without the permission of Harcourt.

COMPLETE AGREEMENT:

These Terms and Conditions constitute the entire and exclusive agreement between the customer and Harcourt unless otherwise agreed in writing by Harcourt and this agreement signed by an officer of Harcourt. These Terms and Conditions shall cancel and supersede any previous terms and conditions. These Terms and Conditions shall be binding upon the successors and legal representatives of the customer and Harcourt. A person who is not a party to the contract between Harcourt and the customer shall not have any rights under or in connection with it.

SEVERANCE:

If a court or any other competent authority finds that any provision of these Terms and Conditions (or part of any provision) is invalid, illegal or unenforceable, that provision or part-provision shall, to the extent required, be deemed deleted, and the validity and enforceability of the other provisions of these terms and conditions shall not be affected. If any invalid, unenforceable or illegal provision of these terms and conditions would be valid, enforceable and legal if some part of it were deleted, the provision shall apply with the minimum modification necessary to make it legal, valid and enforceable.

GOVERNING LAW; JURISDICTION:

These Terms and Conditions and any dispute or claim arising out of or in connection with it or its subject matter or formation (including non-contractual disputes or claims), shall be governed by and construed in accordance with the English law, and the parties irrevocably submit to the exclusive jurisdiction of the courts of England and Wales.